



Charge and Penalty Code

Clearwater County, Sixth Judicial Circuit

The complete list of criminal offenses, traffic infractions, and county ordinances,
with recommended sentences, fines, and bond amounts.

Volume II of the Clearwater County Legal System | Revision 08/2026

Clearwater County is a fictional jurisdiction. This code is not the law of Florida or of any real place.

How to Use This Code

Every offense in this code has a number, a class, and a recommended penalty. The class is the most important part - it tells you which court hears the case, how serious it is, and what the ceiling on punishment is. The recommended penalty is a starting point, not a rule. A judge may go above or below it using the enhancements and mitigators on the last page.

Reading an entry

202.4 Petit Theft - \$100 to \$750 | M1 | 10 months | \$1,000 | \$2,500 bond

Offense number 202.4. It is a first degree misdemeanor, so it is heard in County Court. The standard sentence is ten months, the maximum fine is \$1,000, and standard bond is \$2,500.

Standard sentence versus statutory maximum

The figure in the sentence column is the term the Court should begin from in an ordinary case with an ordinary defendant. It is not the ceiling. The ceiling is the class maximum shown in the table below, and a judge may impose anything up to that maximum, or suspend the sentence entirely, after applying the adjustments listed at the end of this code.

OFFENSE CLASSES

Class	Name	Maximum Jail	Standard Bond	Court	Notes
CAP	Capital / Life Felony	Life imprisonment	No bond	Circuit	Most serious. Jury trial required.
F1	First Degree Felony	Up to 30 years	\$50,000	Circuit	Serious violent or large-scale crimes.
F2	Second Degree Felony	Up to 15 years	\$25,000	Circuit	Violent or high-value offenses.
F3	Third Degree Felony	Up to 5 years	\$10,000	Circuit	Baseline felony level.
M1	First Degree Misdemeanor	Up to 1 year	\$2,500	County	Serious minor crime.
M2	Second Degree Misdemeanor	Up to 60 days	\$1,000	County	Lowest criminal level.
CT	Criminal Traffic	Varies	Varies	County	Mandatory court appearance.
CI	Civil Infraction	None	N/A	County	Fine and points only. No jail.
ORD	County Ordinance	None	N/A	County	Fine only. Handled by citation.

Circuit Court hears all felonies. **County Court** hears misdemeanors, criminal traffic, civil traffic, and ordinance violations. A misdemeanor charged alongside a felony from the same incident goes to Circuit Court with the felony.

100 - OFFENSES AGAINST PERSONS

No.	Offense	Class	Standard Sentence	Max Fine	Bond	Notes
101.1	Murder in the First Degree	CAP	Life	-	No bond	Premeditated or during a felony
101.2	Murder in the Second Degree	F1	30 years	\$10,000	\$100,000	Depraved mind, no premeditation
101.3	Manslaughter	F2	15 years	\$7,500	\$50,000	Culpable negligence causing death
101.4	Vehicular Homicide	F2	15 years	\$7,500	\$50,000	Reckless driving causing death
101.5	Attempted Murder	F1	28 years	\$10,000	\$75,000	Overt act toward killing
102.1	Aggravated Battery	F2	13 years	\$7,500	\$25,000	Great bodily harm or deadly weapon
102.2	Battery	M1	10 months	\$1,000	\$2,500	Unwanted touching or striking
102.3	Battery on a Law Enforcement Officer	F3	5 years	\$5,000	\$15,000	Officer acting in the line of duty
102.4	Battery on a Person Over 65	F3	5 years	\$5,000	\$15,000	Enhanced from simple battery
102.5	Domestic Battery	M1	12 months	\$1,000	\$3,500	No-contact order mandatory
103.1	Aggravated Assault	F3	4 years	\$5,000	\$10,000	Assault with a deadly weapon
103.2	Assault	M2	45 days	\$500	\$1,000	Threat with apparent ability to act
103.3	Assault on a Law Enforcement Officer	M1	12 months	\$1,000	\$2,500	Enhanced
104.1	Kidnapping	F1	28 years	\$10,000	\$75,000	Confinement with intent
104.2	False Imprisonment	F3	5 years	\$5,000	\$10,000	Unlawful restraint
105.1	Armed Robbery	F1	28 years	\$10,000	\$75,000	Firearm or deadly weapon used
105.2	Robbery	F2	15 years	\$7,500	\$40,000	Force or threat of force
105.3	Carjacking	F1	25 years	\$10,000	\$60,000	Robbery of a motor vehicle
105.4	Home Invasion Robbery	F1	28 years	\$10,000	\$75,000	Entering a dwelling to rob
106.1	Stalking	M1	12 months	\$1,000	\$2,500	Repeated following or harassment
106.2	Aggravated Stalking	F3	5 years	\$5,000	\$10,000	With a credible threat
106.3	Violation of a No-Contact Order	M1	12 months	\$1,000	\$3,000	Any contact after an order
107.1	Child Neglect	F3	5 years	\$5,000	\$10,000	Failure to provide care
107.2	Culpable Negligence Causing Injury	M1	10 months	\$1,000	\$2,500	Reckless disregard for safety

200 - OFFENSES AGAINST PROPERTY

No.	Offense	Class	Standard Sentence	Max Fine	Bond	Notes
201.1	Burglary of a Dwelling (Occupied)	F1	25 years	\$10,000	\$50,000	Person present inside
201.2	Burglary of a Dwelling (Unoccupied)	F2	13 years	\$7,500	\$25,000	No person present
201.3	Burglary of a Structure or Conveyance	F3	5 years	\$5,000	\$10,000	Business or vehicle
201.4	Possession of Burglary Tools	F3	4 years	\$5,000	\$7,500	Intent required
202.1	Grand Theft - Over \$50,000	F1	22 years	\$10,000	\$50,000	
202.2	Grand Theft - \$20,000 to \$50,000	F2	12 years	\$7,500	\$25,000	
202.3	Grand Theft - \$750 to \$20,000	F3	4 years	\$5,000	\$10,000	
202.4	Petit Theft - \$100 to \$750	M1	10 months	\$1,000	\$2,500	Second offense enhances
202.5	Petit Theft - Under \$100	M2	45 days	\$500	\$1,000	First offense
202.6	Retail Theft (Shoplifting)	M1	8 months	\$1,000	\$2,000	Value determines enhancement
203.1	Grand Theft Auto	F3	5 years	\$5,000	\$15,000	Motor vehicle of any value
203.2	Grand Theft Auto - Emergency Vehicle	F2	15 years	\$7,500	\$35,000	Police, fire, or EMS vehicle
203.3	Unauthorized Use of a Vehicle	M1	10 months	\$1,000	\$2,500	No intent to permanently deprive
204.1	Criminal Mischief - Over \$1,000	F3	4 years	\$5,000	\$7,500	Willful damage
204.2	Criminal Mischief - \$200 to \$1,000	M1	8 months	\$1,000	\$2,000	
204.3	Criminal Mischief - Under \$200	M2	45 days	\$500	\$750	
204.4	Arson in the First Degree	F1	28 years	\$10,000	\$75,000	Occupied structure
204.5	Arson in the Second Degree	F2	13 years	\$7,500	\$30,000	Unoccupied structure or vehicle
205.1	Trespass in a Structure	M1	8 months	\$1,000	\$1,500	After warning
205.2	Trespass on Property	M2	40 days	\$500	\$750	
205.3	Trespass on Restricted Government Property	F3	4 years	\$5,000	\$7,500	Secure facility
206.1	Dealing in Stolen Property	F2	13 years	\$7,500	\$25,000	Trafficking in stolen goods
206.2	Possession of Stolen Property	F3	4 years	\$5,000	\$7,500	Knowledge required
207.1	Fraud - Over \$50,000	F1	22 years	\$10,000	\$50,000	Scheme to defraud
207.2	Fraud - Under \$50,000	F3	4 years	\$5,000	\$10,000	
207.3	Identity Theft	F2	12 years	\$7,500	\$20,000	Use of another's identifying information
207.4	Credit Card Fraud	F3	4 years	\$5,000	\$10,000	
207.5	Forgery / Uttering a Forged Instrument	F3	4 years	\$5,000	\$10,000	
207.6	Money Laundering	F2	13 years	\$7,500	\$30,000	Concealing criminal proceeds
207.7	Extortion	F2	13 years	\$7,500	\$25,000	Threat to obtain property

300 - CONTROLLED SUBSTANCES

No.	Offense	Class	Standard Sentence	Max Fine	Bond	Notes
301.1	Trafficking - Large Quantity	F1	28 years	\$10,000	\$100,000	Mandatory minimum applies
301.2	Trafficking - Medium Quantity	F2	15 years	\$7,500	\$50,000	
302.1	Sale or Delivery of a Controlled Substance	F2	13 years	\$7,500	\$25,000	
302.2	Sale Within 1,000 ft of a School or Park	F1	25 years	\$10,000	\$50,000	Enhancement zone
302.3	Possession With Intent to Sell	F2	12 years	\$7,500	\$20,000	Quantity and packaging
303.1	Possession of a Controlled Substance	F3	4 years	\$5,000	\$7,500	Diversion often available
303.2	Possession of Cannabis - Over 20g	F3	4 years	\$5,000	\$7,500	
303.3	Possession of Cannabis - Under 20g	M1	6 months	\$1,000	\$1,000	Civil citation option
303.4	Possession of Drug Paraphernalia	M1	5 months	\$1,000	\$750	
304.1	Manufacture of a Controlled Substance	F1	25 years	\$10,000	\$50,000	
304.2	Maintaining a Drug House	F3	5 years	\$5,000	\$10,000	
305.1	Obtaining a Prescription by Fraud	F3	4 years	\$5,000	\$7,500	
305.2	Driving Under the Influence of Drugs	CT	12 months	\$1,500	\$3,500	See 703 series

400 - WEAPONS OFFENSES

No.	Offense	Class	Standard Sentence	Max Fine	Bond	Notes
401.1	Possession of a Firearm by a Convicted Felon	F2	15 years	\$7,500	\$40,000	Mandatory minimum
401.2	Carrying a Concealed Firearm Without a Permit	F3	5 years	\$5,000	\$10,000	
401.3	Carrying a Concealed Weapon (Non-Firearm)	M1	10 months	\$1,000	\$2,500	
402.1	Improper Exhibition of a Firearm	M1	10 months	\$1,000	\$2,500	Brandishing
402.2	Discharging a Firearm in Public	M1	12 months	\$1,000	\$3,000	
402.3	Discharging a Firearm From a Vehicle	F2	15 years	\$7,500	\$35,000	Drive-by
402.4	Shooting Into an Occupied Dwelling or Vehicle	F2	15 years	\$7,500	\$40,000	
403.1	Possession of a Prohibited Weapon	F3	5 years	\$5,000	\$12,500	Automatic weapon, explosive
403.2	Possession of a Firearm on School Grounds	F3	5 years	\$5,000	\$15,000	
403.3	Use of a Firearm During a Felony	F1	25 years	\$10,000	\$60,000	Consecutive sentence
404.1	Altering or Removing a Serial Number	F3	4 years	\$5,000	\$10,000	
404.2	Unlawful Sale or Transfer of a Firearm	F3	5 years	\$5,000	\$12,500	

500 - PUBLIC ORDER AND DECENCY

No.	Offense	Class	Standard Sentence	Max Fine	Bond	Notes
501.1	Disorderly Conduct	M2	45 days	\$500	\$500	Breach of the peace
501.2	Disorderly Intoxication	M2	45 days	\$500	\$500	
501.3	Affray / Public Fighting	M1	8 months	\$1,000	\$1,500	
501.4	Riot	F3	5 years	\$5,000	\$10,000	Three or more persons
501.5	Inciting a Riot	F3	5 years	\$5,000	\$12,500	
501.6	Unlawful Assembly	M2	45 days	\$500	\$750	
502.1	Open Container in Public	ORD	-	\$150	-	Citation only
502.2	Public Urination	ORD	-	\$150	-	Citation only
502.3	Loitering and Prowling	M2	40 days	\$500	\$500	
502.4	Panhandling in a Prohibited Zone	ORD	-	\$100	-	Citation only
503.1	Noise Ordinance Violation	ORD	-	\$200	-	Escalates on repeat
503.2	Littering	ORD	-	\$150	-	
503.3	Illegal Dumping	M1	6 months	\$1,000	\$1,500	Large volume
504.1	Criminal Nuisance	M2	40 days	\$500	\$500	
504.2	Indecent Exposure	M1	10 months	\$1,000	\$2,500	
505.1	Animal Cruelty	F3	4 years	\$5,000	\$7,500	
505.2	Animal at Large	ORD	-	\$100	-	

600 - OFFENSES AGAINST PUBLIC JUSTICE

No.	Offense	Class	Standard Sentence	Max Fine	Bond	Notes
601.1	Resisting an Officer With Violence	F3	5 years	\$5,000	\$12,500	
601.2	Resisting an Officer Without Violence	M1	10 months	\$1,000	\$2,500	
601.3	Obstruction of Justice	M1	10 months	\$1,000	\$2,500	
601.4	Giving False Information to Law Enforcement	M1	8 months	\$1,000	\$2,000	
601.5	False Report of a Crime	M1	10 months	\$1,000	\$2,500	
601.6	False 911 Call / Swatting	F3	5 years	\$5,000	\$15,000	Enhanced if injury results
602.1	Perjury in an Official Proceeding	F3	5 years	\$5,000	\$10,000	
602.2	Perjury Not in an Official Proceeding	M1	10 months	\$1,000	\$2,500	
602.3	Tampering With Evidence	F3	5 years	\$5,000	\$10,000	
602.4	Tampering With a Witness or Juror	F2	13 years	\$7,500	\$25,000	
602.5	Fabricating Evidence	F3	5 years	\$5,000	\$12,500	Applies to officers as well
603.1	Escape From Custody	F2	15 years	\$7,500	\$40,000	
603.2	Aiding an Escape	F3	5 years	\$5,000	\$15,000	
603.3	Introducing Contraband Into a Detention Facility	F3	5 years	\$5,000	\$12,500	
603.4	Failure to Appear - Felony Case	F3	4 years	\$5,000	\$10,000	
603.5	Failure to Appear - Misdemeanor Case	M1	10 months	\$1,000	\$2,500	
604.1	Bribery of a Public Official	F2	13 years	\$7,500	\$30,000	
604.2	Official Misconduct	F3	5 years	\$5,000	\$15,000	Public employee falsifying records
604.3	Impersonating a Law Enforcement Officer	F3	5 years	\$5,000	\$15,000	
604.4	Impersonating a Public Official	M1	10 months	\$1,000	\$2,500	
605.1	Contempt of Court - Direct	M1	8 months	\$1,000	-	Imposed by the judge on the spot
605.2	Contempt of Court - Indirect	M1	10 months	\$1,000	\$1,500	Requires notice and a hearing
605.3	Violation of Probation	-	Up to original max	-	No bond	Sentencing judge decides
606.1	Accessory After the Fact	F3	4 years	\$5,000	\$10,000	
606.2	Conspiracy	-	One level below the target offense	-	Varies	Agreement plus an overt act
606.3	Solicitation	-	One level below the target offense	-	Varies	

700 - CRIMINAL TRAFFIC

No.	Offense	Class	Standard Sentence	Max Fine	Bond	Notes
701.1	Driving Under the Influence - First Offense	M1	10 months	\$1,000	\$2,500	6 mo. license suspension
701.2	Driving Under the Influence - Second Offense	M1	12 months	\$2,000	\$5,000	Interlock required
701.3	Driving Under the Influence - Third or Subsequent	F3	5 years	\$5,000	\$15,000	Revocation
701.4	DUI With Property Damage	M1	12 months	\$2,000	\$5,000	
701.5	DUI With Serious Bodily Injury	F3	5 years	\$5,000	\$20,000	
701.6	DUI Manslaughter	F2	15 years	\$10,000	\$75,000	Mandatory minimum
701.7	Refusal to Submit to Testing	M1	6 months	\$1,000	\$1,500	Automatic 12 mo. suspension
702.1	Reckless Driving	M1	10 months	\$1,000	\$2,000	Willful disregard for safety
702.2	Reckless Driving Causing Injury	F3	4 years	\$5,000	\$10,000	
702.3	Racing on a Highway	M1	10 months	\$1,000	\$2,500	12 mo. license revocation
702.4	Spectator at an Illegal Race	M2	40 days	\$500	\$500	
703.1	Fleeing or Attempting to Elude - Basic	F3	5 years	\$5,000	\$15,000	
703.2	Fleeing or Eluding at High Speed	F2	13 years	\$7,500	\$30,000	
703.3	Fleeing or Eluding Causing Injury or Death	F1	25 years	\$10,000	\$60,000	
704.1	Leaving the Scene of a Crash - Property Damage	M2	60 days	\$500	\$1,000	
704.2	Leaving the Scene of a Crash - Injury	F3	5 years	\$5,000	\$15,000	
704.3	Leaving the Scene of a Crash - Death	F1	25 years	\$10,000	\$50,000	
705.1	Driving While License Suspended - Knowingly	M2	60 days	\$500	\$1,000	First offense
705.2	Driving While License Suspended - Second Offense	M1	10 months	\$1,000	\$2,500	
705.3	Driving While License Revoked - Habitual Offender	F3	4 years	\$5,000	\$7,500	
705.4	Driving Without a Valid License	M2	40 days	\$500	\$500	
706.1	Vehicular Manslaughter	F2	15 years	\$7,500	\$50,000	
706.2	Careless Driving Causing Serious Injury	M1	10 months	\$1,000	\$2,500	

800 - CIVIL TRAFFIC INFRACTIONS

No.	Offense	Class	Standard Sentence	Max Fine	Bond	Notes
801.1	Speeding - 1 to 9 mph over	CI	-	\$125	-	3 points
801.2	Speeding - 10 to 14 mph over	CI	-	\$200	-	3 points
801.3	Speeding - 15 to 19 mph over	CI	-	\$250	-	4 points
801.4	Speeding - 20 to 29 mph over	CI	-	\$350	-	4 points
801.5	Speeding - 30 mph or more over	CI	-	\$500	-	4 points, mandatory court
801.6	Speeding in a School or Construction Zone	CI	-	Double	-	Fine doubled
802.1	Running a Red Light	CI	-	\$275	-	4 points
802.2	Running a Stop Sign	CI	-	\$175	-	3 points
802.3	Failure to Yield Right of Way	CI	-	\$175	-	3 points
802.4	Improper Lane Change	CI	-	\$150	-	3 points
802.5	Following Too Closely	CI	-	\$150	-	3 points
802.6	Improper or Unsafe Passing	CI	-	\$175	-	3 points
802.7	Wrong Way / Driving Against Traffic	CI	-	\$250	-	4 points
802.8	Failure to Signal	CI	-	\$125	-	3 points
803.1	Careless Driving	CI	-	\$200	-	4 points
803.2	Failure to Move Over for Emergency Vehicle	CI	-	\$250	-	3 points
803.3	Failure to Obey a Traffic Control Device	CI	-	\$150	-	3 points
804.1	No Valid Driver License in Possession	CI	-	\$100	-	Correctable - see TR-03
804.2	Expired Registration	CI	-	\$120	-	Correctable - see TR-03
804.3	Operating an Unregistered Vehicle	CI	-	\$150	-	Correctable - see TR-03
804.4	Equipment Violation	CI	-	\$100	-	Correctable - see TR-03
804.5	Illegal Window Tint	CI	-	\$120	-	Correctable
805.1	Seat Belt Violation	CI	-	\$80	-	Non-moving, no points
805.2	Illegal Parking	CI	-	\$50	-	Non-moving
805.3	Parking in a Disabled Space	CI	-	\$275	-	Non-moving
805.4	Obstructing Traffic	CI	-	\$125	-	Non-moving
805.5	Unlawful Use of a Mobile Device While Driving	CI	-	\$130	-	3 points

900 - COUNTY ORDINANCES

No.	Offense	Class	Standard Sentence	Max Fine	Bond	Notes
901.1	Operating a Business Without a License	ORD	-	\$500	-	Per day of violation
901.2	Serving Alcohol Without a License	M1	8 months	\$1,000	\$2,000	Criminal if repeated
901.3	Sale of Alcohol to a Minor	M2	60 days	\$500	\$1,000	
902.1	Curfew Violation	ORD	-	\$100	-	Minors only
902.2	Unpermitted Public Event	ORD	-	\$300	-	
902.3	Obstructing a Public Sidewalk	ORD	-	\$100	-	
903.1	Building Code Violation	ORD	-	\$400	-	Per day
903.2	Unpermitted Construction	ORD	-	\$500	-	
903.3	Fire Code Violation	ORD	-	\$350	-	Occupancy may be suspended
904.1	Unlicensed Vehicle Modification	ORD	-	\$200	-	
904.2	Excessive Vehicle Noise	ORD	-	\$150	-	
904.3	Abandoned Vehicle	ORD	-	\$200	-	Towing at owner's expense

Sentencing Adjustments

A judge starts with the recommended sentence for the offense and then adjusts it. Enhancements move the sentence up, mitigators move it down. If more than one applies, apply them in the order listed. No sentence may exceed the class maximum unless an enhancement expressly advances the class.

ENHANCEMENTS AND MITIGATORS

Circumstance	Effect on the Sentence
Prior conviction, same offense	Add 50% to the recommended sentence
Third or later conviction, same offense	Advance one full class
Offense committed while on probation or bond	Add 50% and no bond on the new charge
Victim was a law enforcement officer, EMS, or fire	Advance one class
Victim was under 18 or over 65	Advance one class
Firearm carried during the offense	Add 15 months, consecutive
Firearm discharged during the offense	Add 25 months, consecutive
Offense committed in a school, park, or place of worship	Advance one class
Offense committed as part of an organized group	Add 50%
Defendant accepted responsibility and pled early	Reduce by up to 25%
No prior record and non-violent offense	Adjudication may be withheld
Restitution paid in full before sentencing	Reduce by up to 25%
Substantial cooperation with the State	Departure below the minimum permitted

Driver License Points

Points are assessed automatically on conviction of a moving violation. They accumulate on the driver's record and trigger suspension at the thresholds below. Electing traffic school under Form TR-02 avoids points once every twelve months.

Threshold	Consequence
12 points in 12 months	License suspended 30 days
18 points in 18 months	License suspended 3 months
24 points in 36 months	License suspended 12 months
Any DUI conviction	License suspended 6 months minimum
Racing on a highway	License revoked 12 months
Three serious convictions in 5 years	Habitual traffic offender - revoked 5 years

Bond Guidelines

The bond amounts in this code are defaults. A judge may raise, lower, or deny bond entirely under Form CR-06 after considering flight risk, danger to the community, and ties to the county.

Situation	Effect on Bond
Defendant has no prior record and strong community ties	Release on own recognizance may be appropriate
Defendant failed to appear in a prior case	Double the standard bond

Situation	Effect on Bond
Offense committed while on bond or probation	No bond until first appearance
Charge involves violence against a specific victim	Add a no-contact condition regardless of amount
Defendant cannot afford any bond and the charge is non-violent	Consider supervised release instead
Capital or life felony with strong proof	No bond permitted

Charging honestly

An officer should charge what the facts actually support, not the most serious offense that could arguably apply. Charges filed to create leverage rather than to reflect the conduct undermine the whole process, and a prosecutor who allows it repeatedly should expect the Court to take notice. The State Attorney has the power to reduce or drop any charge on Form CR-03.